

**PLACER COUNTY SUPERIOR COURT**  
**THURSDAY, CIVIL LAW AND MOTION**  
**DEPARTMENT 3**  
**THE HONORABLE MICHAEL W. JONES**  
**TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.**

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requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds “in all procedural respects as a motion for summary judgment.” (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*)

Plaintiff’s first amended complaint alleges a lone cause of action for quiet title against defendant. A quiet title cause of action requires plaintiff to establish (1) “title of the plaintiff as to which a determination under this chapter is sought and the basis of the title” and (2) “[t]he adverse claims to the title of the plaintiff against which a determination is sought.” (Code Civ. Proc., § 761.020, subds. (b)–(c).) Moreover, “a lis pendens must be filed in a quiet title action.” (*Carr v. Rosien* (2015) 238 Cal.App.4th 845, 851; Code Civ. Proc., § 761.010, subd. (b).)

Here, defendant meets her initial burden to show the quiet title cannot be established because the court expunged the notice of lis pendens as it was void and invalid to her. (UMF No. 11.) The burden therefore shifts to plaintiff to raise a triable issue of material fact.

Plaintiff does not thereafter meet its burden to raise a triable issue of material fact. Accordingly, the motion for summary adjudication is granted as to the quiet title cause of action. Therefore, because the motion for summary adjudication is granted as to the only cause of action alleged against defendant, defendant’s motion for summary judgment is granted.

**13. S-CV-0053126      HUSSAIN, SYED v. RAMIREZ, ISIDRO**

The order to show cause re: examination is dropped from calendar in light of the parties’ joint declaration filed with the court on June 18, 2026, that includes all information required by the court.

**14. S-CV-0053210      GOODALL, BERNADETTE v. ANDRIYENKO, ANATOLIY**

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Plaintiff's Motion for Order Permitting Filing of Amendment to Complaint for Fictitious Name Pursuant to Code of Civil Procedure Sections 474, 473(a)(1), and 576

Plaintiff's motion is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 474, 576.)  
Plaintiff shall file and serve the Doe amendments on or before **July 6, 2026**.

**15. S-CV-0055128 VW CREDIT v. BENEDYUK, VLADIMIR**

The motion to set aside default judgment is dropped from calendar as no moving papers were filed with the court.

**16. S-CV-0055608 WOOD, SCOTT v. GENERAL MOTORS**

Plaintiff's Motion for Attorney's Fees and Costs

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because he achieved his litigation objectives. Defendant does not challenge this. Accordingly, the court must

make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)